

Republic of the Philippines
Bangsamoro Autonomous Region in Muslim Mindanao
BANGSAMORO TRANSITION AUTHORITY
Cotabato City

Second Parliament
Fourth Regular Session

BTA Bill No. 470

Bangsamoro Autonomous Region in Muslim Mindanao
Parliament
BILLS AND INDEX DIVISION

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Introduced by:

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AN ACT
APPROPRIATING SUPPLEMENTAL FUNDS FOR THE OPERATION OF THE
BANGSAMORO GOVERNMENT AND FOR OTHER PURPOSES

Be it enacted by the Bangsamoro Transition Authority assembled:

Section 1. *Appropriation of Funds.* – The amounts set forth in this section are hereby appropriated out of the unutilized prior years' appropriations from the Bangsamoro Treasury for the operation of the Bangsamoro Government, except where otherwise specifically provided herein:

GENERAL PROVISIONS

Section 2. Allotment Order. – A Special Allotment Release Order (SARO) shall be issued to the Ministries, Offices, and/or Agencies (M/O/As) to authorize the obligation of appropriations in this Supplemental Appropriations Act.

Section 3. Use of Government Funds. – Government Funds shall be utilized in accordance with the appropriations authorized for the purpose and comply with applicable laws, rules and regulations.

Section 4. Strict Adherence to Procurement Laws, Rules and Regulations. – M/O/As shall strictly adhere to the provisions of Republic Act No. 12009, otherwise known as the “*New Government Procurement Act*”, and its 2025 IRR, as well as relevant issuances of the Government Procurement Policy Board in the procurement of goods, infrastructure projects, and consulting services.

To promote transparency and achieve efficiency in the procurement process, the Philippine Government Electronic Procurement System (PhilGEPS) shall be the primary source of information and channel for the conduct of all procurement activities of the Bangsamoro Government.

Section 5. Engineering and Administrative Overhead (EAO) Expenses. – M/O/As are authorized to deduct engineering and administrative overhead (EAO) expenses not exceeding one percent (1%) of the project funds for infrastructure projects costing more than One Million Pesos (P1,000,000.00).

Section 6. Administrative Costs. – M/O/As are authorized to deduct Administrative Costs not exceeding three percent (3%) of the project costs for projects costing more than One Million Pesos (P1,000,000.00).

Section 7. Authority to Purchase Motor Vehicle. – All transportation equipment outlays herein appropriated shall, prior to procurement require the Authority to Purchase Motor Vehicle approved by the Chief Minister upon recommendation of the Ministry of Finance, and Budget and Management (MFBM).

The issuance of the Authority to Purchase Motor Vehicle, including the prohibitions and exclusions, shall be covered by existing MFBM guidelines.

All purchase of motor vehicles shall be strictly made in compliance with existing accounting and auditing standards and adhering to procurement law and administrative orders.

Section 8. Certification of Availability of Funds. – No obligations chargeable against any authorized allotment shall be incurred by M/O/As without first securing a Certification of Availability of Funds (CAF) for the purpose from the M/O/As Chief Accountant, subject to applicable laws and guidelines. The CAF sufficient to cover the cost of the contracted activities shall be contained in, and made part of, the contract duly signed by the Chief Accountant of the contracting M/O/As.

Section 9. Cash Budgeting System. – All appropriations authorized in this Act shall be available for release and obligation for the purpose specified, and under the same general and special provisions applicable thereto, until June 30, 2028. However, Personnel Services shall be valid for obligation and disbursement until December 31, 2027 only.

In exceptional circumstances, payments for obligations incurred for Personnel Services may be allowed within an extended payment period until March 31, 2028.

As a rule, disbursement of MOOE and COs shall be made not later than June 30, 2028. However,

the completion of construction, inspection, and payment of infrastructure capital outlays, and the delivery, inspection, and payment of MOOE and other capital outlays shall be made not later than December 31, 2028.

After the end of the validity period, all unreleased appropriations, unobligated allotments, and obligated allotments for goods/services/projects not yet delivered, rendered, or completed, and accepted shall revert to the Bangsamoro Treasury under a Special Fund for reappropriation in accordance with Section 19, Article XII, of Republic Act 11054. M/O/As shall strictly observe the validity of appropriations and the reversion of funds.

All funds transferred between Organizational Units within a M/O/A, between M/O/As, or by M/O/As to LGUs shall not be considered disbursed under this Section by the source M/O/A until the transferred amounts have been actually utilized to pay for completed construction, goods delivered and services rendered, inspected, and accepted within the validity period. It is understood that transfer of funds shall strictly be in accordance with pertinent budgeting, accounting, auditing, and procurement laws, rules, and regulations.

The MFBM may issue necessary guidelines for the effective implementation of this section.

Section 10. *Direct Release of Funds to Ministries, Offices, and Agencies.* – Funds appropriated in this Act shall be released directly to the M/O/As including the funds that are specifically appropriated to the Provincial Offices and Organizational Units of M/O/As. The MFBM may formulate guidelines as to the reporting and releasing of these funds.

Section 11. *Report on Commission on Audit Findings and Recommendation.* – Within sixty (60) days from receipt of the Commission on Audit (COA) Annual Audit Report, M/O/As concerned shall submit to the COA, either in printed form or by way of electronic document, a status report on the actions taken on said audit findings and recommendations using the prescribed form under COA Memorandum No. 2014-002 dated March 18, 2014. They shall likewise furnish the MFBM, the Bangsamoro Transition Authority Speaker, and the Committee on Finance, and Budget and Management, either in printed form or by way of electronic document, a copy of said reports.

The Minister or Head of Office or Agency concerned and the M/O/A's web administrator or his/her equivalent shall be responsible for ensuring that said status reports are posted on the M/O/A's website.

Section 12. *Financial and Physical Accountability Reports.* – M/O/As shall submit reports on its financial and physical accomplishments, on a monthly, quarterly, or yearly basis, as required under the existing guidelines through the following:

- a) Submission of hardcopy to the MFBM;
- b) Submission of reports through electronic means; and
- c) Publication to M/O/A's website.

The M/O/A concerned shall send written notice when said reports have been submitted or posted on its website to the MFBM and other offices where the submission of reports is required under existing laws, rules and regulations. The date of notice to said offices shall be considered the date of compliance with this requirement.

Failure to comply with any of the foregoing shall result in the automatic suspension of the salaries of the responsible official or employee until they have complied with the above requirements pursuant to existing laws and guidelines issued thereon.

Repeated failure or refusal of said official or employee to submit the above reports without any justifiable cause may be a ground for administrative disciplinary action, subject to pertinent civil

service rules and regulations. The Minister or Head of Office/Agency shall be responsible for ensuring compliance with this penalty provision.

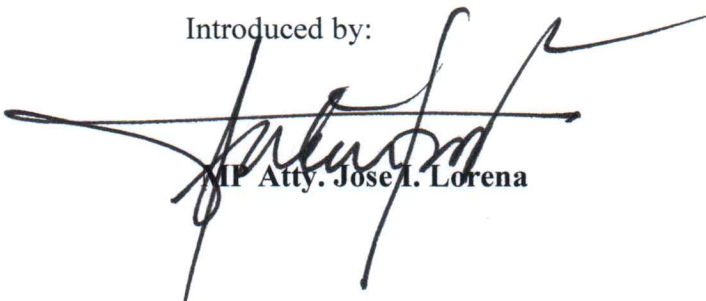
Section 13. Transparency in Infrastructure Projects. – M/O/As shall post the following on their respective websites, within the period indicated:

- a) The project title, location, and detailed description; detailed estimates in arriving at the Approved Budget for the Contract; and winning contractor and the detailed estimates of the bid as awarded, within thirty (30) calendar days from entering into the contract; and
- b) The detailed actual cost of the project and variation orders issued, if any, within thirty (30) calendar days from the issuance of a certificate of completion.

Section 14. Separability Clause. – If for any reason, any section or provision of this Act is declared unconstitutional or invalid, other sections or provisions which are not affected thereby shall continue to be in full force and effect.

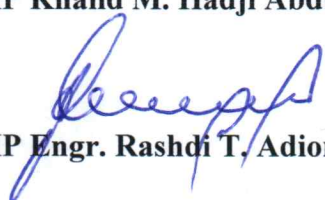
Section 15. Effectivity. – This Act shall take effect fifteen (15) days after its publication in any newspaper of general circulation in the Bangsamoro Autonomous Region.

Introduced by:



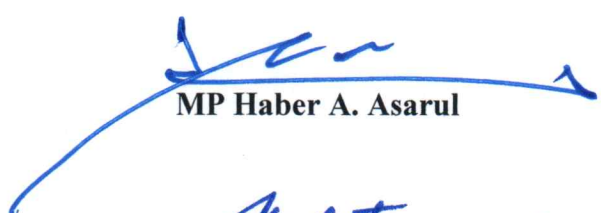
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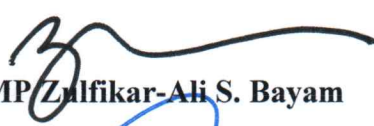
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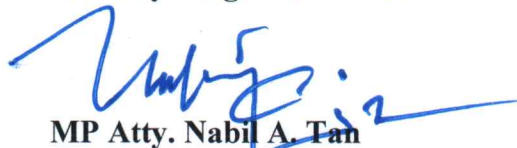
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